STATE OF MINNESOTA	DISTRICT COURT
COUNTY OF HENNEPIN	FOURTH JUDICIAL DISTRICT Case Type: Other Contract
Yibiao Lu and Jie Hu, Plaintiffs, vs. Fire Insurance Exchange, by and through its attorney-in-fact Fire Underwriters Association, doing business as Farmers Insurance, Defendant.	Case Type: Contract Court File No. 27-CV-26-11606 Judge: Jamie Anderson **DEFENDANT'S RESPONSE TO PLAINTIFFS' FIRST SET OF REQUESTS FOR ADMISSION**

TO: Plaintiffs Yibiao Lu and Jie Hu, 17756 George Moran Drive, Eden Prairie, Minnesota 55347:

Defendant, Fire Insurance Exchange (hereinafter "FIE"), as and for its Responses to Plaintiffs' Requests for Admission, states as follows:

GENERAL OBJECTIONS: FIE objects to Plaintiffs' First Set of Requests for Admission to Defendant FIE ("RFAs") to the extent that the RFAs are seventeen pages long, include 141 RFAs, most of which are not relevant to the Plaintiffs' claim, which was resolved by a binding appraisal award; the RFAs are outside of the scope of discovery pursuant to the proportionality requirements of Minn. R. Civ. P. 1 and 26.02; and the discovery is oppressive and creates an undue burden to FIE. On or about September 25, 2026, FIE informed Plaintiffs of its specific objections and indicated that it would answer 25 of Plaintiffs' 141 RFAs. Plaintiffs refused to agree to limit the RFAs. FIE hereby provides responses to the first 25 RFAs and hereby denies the remainder of the RFAs. FIE reserves the right to seek relief from the Court if necessary.

The Policy and the coverage grant

REQUEST FOR ADMISSION NO. 1: Admit that The September 3, 2024 Denial Package to Plaintiffs stated, "our investigation found your policy provides coverage for direct physical loss to insured property, less uninsured or excluded."

RESPONSE: Admit that the September 3, 2024 correspondence included, in part, the language quoted in Request for Admission 1. The September 3, 2024 correspondence and attachments is 74 pages long and speaks for itself.

REQUEST FOR ADMISSION NO. 2: Admit that The Policy Form, at "Section I - Loss or Damage Insured," states: "We insure accidental direct physical loss or damage to that property described in Section I - Types of Property Insured."

RESPONSE: Admit that the Policy speaks for itself. Section I – Loss or Damage Insured is four paragraphs long. Admit that Section I, in part, states: "We insure accidental direct physical loss or damage to that property described in Section I - Types of Property Insured."

REQUEST FOR ADMISSION NO. 3: Admit that item 26 ("Windstorm or hail") of subsection B of Section I – Uninsured Loss or Damage and Excluded Causes of Loss or Damage of The Policy Form does not apply to loss or damage to the windows of the dwelling at The Property.

RESPONSE: Deny.

B. Identity and capacity of the acting entity

Relevant to Defendant's First Affirmative Defense, which alleges "there exists a lack of jurisdiction over Defendant FIE."

REQUEST FOR ADMISSION NO. 4: Admit that Christian Dudley was employed or engaged by Fire Insurance Exchange at the time of his involvement in The Claim.

RESPONSE: Admit.

REQUEST FOR ADMISSION NO. 5: Admit that Nicholas Brau was employed or engaged by Fire Insurance Exchange at the time of his September 6, 2024 inspection of The Property.

RESPONSE: Admit.

REQUEST FOR ADMISSION NO. 6: Admit that Bradlee Monson was employed or engaged by Fire Insurance Exchange at the time of his involvement in The Claim.

RESPONSE: Admit.

REQUEST FOR ADMISSION NO. 7: Admit that Fire Insurance Exchange made the coverage decision communicated in The September 3, 2024 Denial Package to Plaintiffs.

RESPONSE: Admit.

REQUEST FOR ADMISSION NO. 8: Admit that Fire Insurance Exchange made the coverage decision communicated in Your November 4, 2024 letter to Plaintiffs.

RESPONSE: Admit.

REQUEST FOR ADMISSION NO. 9: Admit that Fire Insurance Exchange retained Hancock Claims Consultants to inspect The Property.

RESPONSE: Admit.

REQUEST FOR ADMISSION NO. 10: Admit that Fire Insurance Exchange maintains the claim file for The Claim.

RESPONSE: Admit.

REQUEST FOR ADMISSION NO. 11: Admit that Fire Insurance Exchange maintains the claim file for The 2020 Claim.

RESPONSE: Admit.

REQUEST FOR ADMISSION NO. 12: Admit that Fire Underwriters Association acts as attorney-in-fact for Fire Insurance Exchange.

RESPONSE: Without the scope of purported attorney-in-fact relation or the identity Fire Underwriters Association defined, the request is denied as stated.

C. The appraisal: the Demand, and what the Award states

REQUEST FOR ADMISSION NO. 13: Admit that Plaintiffs' August 3, 2025 Demand for Appraisal did not list downspouts, gutters, exterior doors, or window screens among the items to be considered by the appraisal panel.

RESPONSE: Admit that the Demand for Appraisal speaks for itself and to the extent that the Demand did not list downspouts, gutters, exterior doors. Deny that the Demand for Appraisal did not list "window screens" as the Demand for Appraisal included "Windows".

REQUEST FOR ADMISSION NO. 14: Admit that The Appraisal Award identifies the two awarded windows only by the designations "F1.7" and "B1.2."

RESPONSE: Admit that the Plaintiffs and the Defendant are bound by the Appraisal Award. Admit that the Appraisal Award speaks for itself.

REQUEST FOR ADMISSION NO. 15: Admit that The Appraisal Award states a Replacement Cost Value of $12,800 and an Actual Cash Value of $6,400 on a single line, the item description of which reads "Windows F1.7 B1.2."

RESPONSE: Admit that the Plaintiffs and the Defendant are bound by the Appraisal Award. Admit that the Appraisal Award speaks for itself.

REQUEST FOR ADMISSION NO. 16: Admit that The Appraisal Award does not state separately an actual value or a loss for the window designated "F1.7."

RESPONSE: Deny. The Appraisal Award speaks for itself. The Appraisal Award set the amount of loss stating separately the actual cash value, the replacement cost and a description of the damage to the item "Windows" as required by the Policy.

REQUEST FOR ADMISSION NO. 17: Admit that The Appraisal Award does not state separately an actual value or a loss for the window designated "B1.2."

RESPONSE: Deny. The Appraisal Award speaks for itself. The Appraisal Award set the amount of loss stating separately the actual cash value, the replacement cost and a description of the damage to the item "Windows" as required by the Policy.

REQUEST FOR ADMISSION NO. 18: Admit that The Appraisal Award does not state an actual value or a loss for any window at The Property other than the two windows designated "F1.7" and "B1.2."

RESPONSE: Admit that the Plaintiffs and the Defendant are bound by the Appraisal Award. Admit that the Appraisal Award speaks for itself.

REQUEST FOR ADMISSION NO. 19: Admit that The Appraisal Award does not state, as to any window at The Property other than the windows designated "F1.7" and "B1.2," whether hail caused damage to that window.

RESPONSE: Admit that the Plaintiffs and the Defendant are bound by the Appraisal Award. Admit that the Appraisal Award speaks for itself.

REQUEST FOR ADMISSION NO. 20: Admit that You are bound by The Appraisal Award's determination that hail was the cause of loss to the windows designated "F1.7" and "B1.2."

RESPONSE: Admit that both Plaintiffs and Defendant are bound by the Appraisal Award.

REQUEST FOR ADMISSION NO. 21: Admit that You do not contend that any provision of Section I – Uninsured Loss or Damage and Excluded Causes of Loss or Damage of The Policy Form bars or reduces recovery for the loss to the windows designated "F1.7" and "B1.2" in The Appraisal Award.

RESPONSE: Admit that the Plaintiffs and the Defendant are bound by the Appraisal Award. Admit that the Appraisal Award speaks for itself.

REQUEST FOR ADMISSION NO. 22: Admit that the application of the windstorm/hail deductible is the only reason You have made no payment on account of the loss to the windows designated "F1.7" and "B1.2" in The Appraisal Award.

RESPONSE: Admit.

REQUEST FOR ADMISSION NO. 23: Admit that, on The Appraisal Award, the signature line and date line for "Greg Tomes" beneath the statement "We certify the amounts established above for the described loss" are blank.

RESPONSE: Admit that the Plaintiffs and the Defendant are bound by the Appraisal Award. Admit that the Appraisal Award speaks for itself.

REQUEST FOR ADMISSION NO. 24: Admit that the only signature of Greg Tomes on The Appraisal Award appears in the section acknowledging that Wade Roos "has been appointed to act as umpire in accord with the policy conditions."

RESPONSE: Admit that the Plaintiffs and the Defendant are bound by the Appraisal Award. Admit that the Appraisal Award speaks for itself.

REQUEST FOR ADMISSION NO. 25: Admit that the only items listed in the item column of The Appraisal Award are "Siding & Paint," "Windows F1.7 B1.2," and "Debris."

RESPONSE: Admit that the Plaintiffs and the Defendant are bound by the Appraisal Award. Admit that the Appraisal Award speaks for itself.

REQUEST FOR ADMISSION NO. 26: Admit that The Appraisal Award states a Replacement Cost Value of $0 and an Actual Cash Value of $0 for the item "Siding & Paint."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 27: Admit that The Appraisal Award states "Hail" in the Causation column for the item "Siding & Paint."

RESPONSE: Pursuant to FIE's General Objections, deny.

D. The September 3, 2024 denial

REQUEST FOR ADMISSION NO. 28: Admit that The September 3, 2024 Denial Package to Plaintiffs stated, "There were no other damages observed."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 29: Admit that on September 6, 2024, Your Senior Claim Adjuster Nicholas Brau observed dents on multiple windows at The Property.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 30: Admit that during the September 6, 2024 inspection of The Property, Nicholas Brau measured multiple windows at The Property.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 31: Admit that on October 28, 2025, Plaintiff Yibiao Lu sent an electronic mail message to nic.brau@farmersinsurance.com stating, "We found dents together and you measured sizes of some damaged windows. Can we ask for a copy of the notes you took that day?"

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 32: Admit that the inspection referred to in The September 3, 2024 Denial Package as "we had your home inspected" was the August 29, 2024 inspection performed by Hancock Claims Consultants.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 33: Admit that, in connection with The Claim, You did not obtain any engineering analysis, engineering report, or engineering opinion concerning The Property before issuing The September 3, 2024 Denial Package.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 34: Admit that, in connection with The Claim, no licensed professional engineer inspected The Property on Your behalf before September 3, 2024.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 35: Admit that Nicholas Brau did not inspect The Property before The September 3, 2024 Denial Package was issued.

RESPONSE: Pursuant to FIE's General Objections, deny.

E. The November 4, 2024 denial and the provisions it cited

Each provision below is quoted as it appears in The Coverage Outcome Attachment.

FIE OBJECTS TO THE STATEMENT THAT "EACH PROVISION BELOW IS QUOTED AS IT APPEARS IN THE COVERAGE OUTCOME ATTACHMENT." THE STATEMENT IS UNSUBSTANTIATED. THERE WERE NO ATTACHMENTS TO PLAINTIFFS' REQUESTS FOR ADMISSION.

REQUEST FOR ADMISSION NO. 36: Admit that The Coverage Outcome Attachment cites Section I.A.4 and Section I.B.6, "Inherent Vice or Latent Defect."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 37: Admit that The Coverage Outcome Attachment cites Section I.A.7, "Wear and tear or mechanical breakdown."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 38: Admit that The Coverage Outcome Attachment cites Section I.A.8, "Marring."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 39: Admit that The Coverage Outcome Attachment cites Section I.A.9 and Section I.B.9, "Corrosion, Deterioration, Decay or Rust."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 40: Admit that The Coverage Outcome Attachment cites Section I.B.4, "Neglect or Lack of Maintenance or Failure to Make Repairs."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 41: Admit that The Coverage Outcome Attachment cites Section I.B.5, "Faulty, Inadequate, Defective or Incomplete Planning, Zoning, Maintenance, Repairs, Renovation, Manufacture or Construction."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 42: Admit that The Coverage Outcome Attachment cites Section I.B.8, "Wear and Tear, Deterioration or Mechanical Breakdown."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 43: Admit that the definition of "Marring" set out at paragraph 16 of The Coverage Outcome Attachment lists "denting" among its examples of marring.

RESPONSE: Pursuant to FIE's General Objections, deny.

F. The Marring provision and its hail exception

Requests 44 and 45 quote The Policy Form. Requests 46 and 47 concern The Coverage Outcome Attachment transmitted with Your November 4, 2024 letter, and are to be read with Request No. 43.

REQUEST FOR ADMISSION NO. 44: Admit that item 8 ("Marring") of subsection A of Section I – Uninsured Loss or Damage and Excluded Causes of Loss or Damage of The Policy Form states: "However, we do insure marring which is directly caused by, arises out of or results from the following causes of loss, subject to the terms and limitations set forth in subsection B. Excluded Causes of Loss or Damage and in Extensions of Coverage for any such cause of loss or extensions of coverage:"

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 45: Admit that "windstorm or hail" is among the causes of loss listed immediately after the sentence quoted in the preceding request.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 46: Admit that The Coverage Outcome Attachment does not set out the sentence of item 8 ("Marring") of subsection A that begins "However, we do insure marring."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 47: Admit that, for item 8 ("Marring") of subsection A, The Coverage Outcome Attachment sets out only the heading "8. Marring." followed by an ellipsis.

RESPONSE: Pursuant to FIE's General Objections, deny.

G. The Prieve engagement, the November 4, 2024 letter, and work product

Requests 48 through 54 concern the engagement of Prieve Engineering, LLC, Your November 4, 2024 letter, and the work-product status of Your claim file, and are to be read with Requests Nos. 55 through 58.

REQUEST FOR ADMISSION NO. 48: Admit that You do not contend that The Prieve Report was prepared in anticipation of litigation or for trial within the meaning of Minn. R. Civ. P. 26.02(d).

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 49: Admit that neither Prieve Engineering, LLC nor Nathan Prieve was retained or specially employed by You in anticipation of litigation or preparation for trial within the meaning of Minn. R. Civ. P. 26.02(e)(2).

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 50: Admit that no document in Your claim file for The Claim created on or before November 4, 2024 was prepared in anticipation of litigation or for trial within the meaning of Minn. R. Civ. P. 26.02(d).

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 51: Admit that The Prieve Report states that Prieve Engineering, LLC visited The Property "Per the request of Nic Brau of Farmers Insurance."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 52: Admit that The Prieve Report bears the report date November 4, 2024.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 53: Admit that Your November 4, 2024 letter to Plaintiffs was signed by Nicholas Brau, Claims Spec Rep Prop, Fire Insurance Exchange.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 54: Admit that Your November 4, 2024 letter to Plaintiffs stated, "Our investigation found the condition of the window and components to be from wear/tear as referrenced [sic] in the attached engineer report."

RESPONSE: Pursuant to FIE's General Objections, deny.

H. The Prieve Report and Photo Appendix A

REQUEST FOR ADMISSION NO. 55: Admit that You retained Prieve Engineering, LLC to "evaluate the condition of windows in the home as relates to hail."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 56: Admit that You did not retain Prieve Engineering, LLC to evaluate the condition of the siding at The Property.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 57: Admit that The Prieve Report contains no quantitative impact-force calculation.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 58: Admit that The Prieve Report contains no terminal-velocity calculation.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 59: Admit that Photo Appendix A contains no photograph of the two-sash fixed window that is the only other window on the rear (east) elevation of the attached garage at The Property, south of the garage window depicted at photographs A-213 through A-217.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 60: Admit that no person acting for You or retained by You has inspected the window described in the preceding request.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 61: Admit that The Prieve Report is a genuine copy of the report prepared by Prieve Engineering, LLC, File Number 241008.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 62: Admit that The Prieve Report does not state the size of any hailstone that fell at The Property on July 13 or 14, 2024.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 63: Admit that The Prieve Report does not state the minimum hailstone size required to dent the window frames or sashes at The Property.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 64: Admit that The Prieve Report does not state the criteria used to determine whether a dent is consistent with hail.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 65: Admit that The Prieve Report does not state the size, depth, or dimensions of any dent, mark, or indentation described in it.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 66: Admit that The Prieve Report does not identify any publication, study, or test method in support of any opinion stated in it.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 67: Admit that The Prieve Report does not identify the "customary and usual standards" referred to on page 2 of The Prieve Report.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 68: Admit that The Prieve Report does not state any wind speed at The Property on July 13 or 14, 2024.

RESPONSE: Pursuant to FIE's General Objections, deny.

I. The 2020 Claim

REQUEST FOR ADMISSION NO. 69: Admit that line item 1 of the estimate within The February 18, 2022 Settlement Package reads "R&R Wood window - casement, 12-23 sf" and states a quantity of 2.00 EA.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 70: Admit that the only line items of the estimate within The February 18, 2022 Settlement Package that refer to windows are line items 1 ("R&R Wood window - casement, 12-23 sf"), 2 ("Window blind - horizontal or vertical - Detach & reset"), 3 ("Additional charge for a retrofit window, 24-40 sf"), and 32 ("Window treatment repair").

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 71: Admit that the estimate within The February 18, 2022 Settlement Package states "Type of Loss: Hail."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 72: Admit that the estimate within The February 18, 2022 Settlement Package does not identify the location at The Property of the item or items addressed by line item 1.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 73: Admit that Your claim records for The Property identify no hail loss with a date of loss after September 5, 2020, other than The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 74: Admit that on October 7, 2021, You received a request from Plaintiff Yibiao Lu for an extension of time to complete repairs or replacement and to recover replacement cost benefits on The 2020 Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 75: Admit that Your October 12, 2021 letter to Plaintiff Yibiao Lu concerning The 2020 Claim stated: "We're happy to extend your replacement cost deadline to February 15, 2022."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 76: Admit that You did not extend the replacement cost deadline for The 2020 Claim beyond February 15, 2022.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 77: Admit that Your February 17, 2022 electronic mail message to Plaintiff Yibiao Lu concerning The 2020 Claim stated: "I am unable to ask for additional time without detailed information as to why the work was not able to be completed in the timeline provided by the contractor."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 78: Admit that before February 17, 2022, You received from Plaintiff Yibiao Lu a request for an extension of the replacement cost deadline on The 2020 Claim beyond February 15, 2022.

RESPONSE: Pursuant to FIE's General Objections, deny.

J. The engineer-report requirement and Plaintiffs' submissions

REQUEST FOR ADMISSION NO. 79: Admit that on February 3, 2025, Your field claim supervisor Bradlee Monson told Plaintiff Yibiao Lu that You would not review evidence unless it was provided by an engineer.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 80: Admit that You have no written policy, procedure, or guideline describing the peer review referred to in Your answer to paragraph 24 of the Complaint.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 81: Admit that You received Plaintiffs' January 31, 2025 submission concerning post-2020 storm activity and gutter replacement.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 82: Admit that You received Plaintiffs' February 10, 2025 submission containing City of Eden Prairie permit records and a neighbor canvass.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 83: Admit that You received, directly or through Peter Pietila, Plaintiffs' May 28, 2025 submission containing National Weather Service and Interactive Hail Maps material.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 84: Admit that You did not reopen The Claim after receiving the submissions identified in the three preceding requests.

RESPONSE: Pursuant to FIE's General Objections, deny.

K. Missing records and non-payment

REQUEST FOR ADMISSION NO. 85: Admit that Your October 10, 2025 letter to Plaintiffs stated, "The file does not contain a report on the requested date."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 86: Admit that the "requested date" referred to in the statement quoted in the preceding request was September 6, 2024.

RESPONSE: Pursuant to FIE's General Objections, deny.

See also Requests for Admission Nos. 140 and 141.

REQUEST FOR ADMISSION NO. 87: Admit that You have paid Plaintiffs nothing on The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

See also Request for Admission No. 22.

L. Claim handlers and the September 6, 2024 inspection records

Requests 88 through 97 concern the persons who handled The Claim and the records of the September 6, 2024 inspection, and are to be read with Requests Nos. 4 through 8, 29, 85, and 86.

REQUEST FOR ADMISSION NO. 88: Admit that Christian Dudley acted on behalf of Fire Insurance Exchange in handling The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 89: Admit that Nicholas Brau acted on behalf of Fire Insurance Exchange in handling The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 90: Admit that Bradlee Monson acted on behalf of Fire Insurance Exchange in handling The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 91: Admit that Zorphlon Miller acted on behalf of Fire Insurance Exchange in handling The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 92: Admit that Jillian Bell acted on behalf of Fire Insurance Exchange in handling The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 93: Admit that during the September 6, 2024 inspection of The Property, Nicholas Brau made handwritten notes, photos, measurements, or sketches concerning the windows at The Property.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 94: Admit that on October 29, 2025, notes, photos, measurements, or sketches made by Nicholas Brau in connection with the September 6, 2024 inspection of The Property were in Your possession, custody, or control.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 95: Admit that no document You have produced or released to Plaintiffs records Nicholas Brau's observations from the September 6, 2024 inspection of The Property.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 96: Admit that, as of September 6, 2024, You had not issued any litigation hold, preservation notice, or document-preservation instruction directing the preservation of documents concerning The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 97: Admit that, as of November 4, 2024, You had not issued any litigation hold, preservation notice, or document-preservation instruction directing the preservation of documents concerning The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

M. The September 3, 2024 Denial Package and its photograph logs

REQUEST FOR ADMISSION NO. 98: Admit that You sent The September 3, 2024 Denial Package to Plaintiffs on or about September 3, 2024.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 99: Admit that each of the 38 photographs in The First Photo Set bears a No-Damage Caption.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 100: Admit that 94 of the 100 photographs in The Second Photo Set bear a No-Damage Caption.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 101: Admit that The Second Photo Set contains 34 photographs whose captions begin with the word "Siding."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 102: Admit that each photograph in The Second Photo Set whose caption begins with the word "Siding" bears a No-Damage Caption.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 103: Admit that photographs numbered 98, 99, and 100 of The Second Photo Set are photographs of downspouts at The Property.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 104: Admit that each of photographs numbered 98, 99, and 100 of The Second Photo Set bears a No-Damage Caption.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 105: Admit that The First Photo Set and The Second Photo Set were prepared by Hancock Claims Consultants in connection with its August 29, 2024 inspection of The Property.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 106: Admit that, in a No-Damage Caption, the underscore and numeral following the word "No" distinguish multiple photographs bearing the same underlying caption and do not denote a different condition, assessment, or finding.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 107: Admit that Your October 10, 2025 letter to Plaintiffs was signed by Zorphlon Miller, Senior General Claims Adjuster.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 108: Admit that Your October 10, 2025 letter to Plaintiffs stated, "I have attached the coverage position and photos sent by Mr. Dudley."

RESPONSE: Pursuant to FIE's General Objections, deny.

N. The October 29, 2025 email

REQUEST FOR ADMISSION NO. 109: Admit that on October 29, 2025, Nicholas Brau sent Plaintiffs an electronic mail message stating, "All the information we can release has already been sent to you."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 110: Admit that the message identified in Request No. 109 was signed by Nicholas Brau, Claims Spec Rep Prop, Fire Insurance Exchange.

RESPONSE: Pursuant to FIE's General Objections, deny.

O. The October 21, 2025 reply and the handling of post-appraisal correspondence

REQUEST FOR ADMISSION NO. 111: Admit that Your October 21, 2025 electronic mail message to Plaintiffs was signed by Jillian Bell, Senior General Claims Adjuster, Fire Insurance Exchange.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 112: Admit that Jillian Bell was employed or engaged by Fire Insurance Exchange on October 21, 2025.

RESPONSE: Pursuant to FIE's General Objections, deny.

P. Party identity, agency, and the Hancock inspector

REQUEST FOR ADMISSION NO. 113: Admit that You do not contend that any person should be the defendant in this action in place of Fire Insurance Exchange.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 114: Admit that You do not contend that any person must be added as a defendant in this action.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 115: Admit that You do not contend that Fire Insurance Exchange is misnamed or misdescribed in the caption of this action.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 116: Admit that, in its dealings with Plaintiffs concerning The Policy and The Claim, Fire Insurance Exchange did business under the name "Farmers Insurance."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 117: Admit that Zorphlon Miller was employed or engaged by Fire Insurance Exchange on October 10, 2025.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 118: Admit that Peter Pietila acted as Your agent in connection with The Policy.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 119: Admit that Jayden Grimm performed the August 29, 2024 inspection of The Property on behalf of Hancock Claims Consultants.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 120: Admit that Jayden Grimm was the only individual who inspected The Property on behalf of Hancock Claims Consultants on August 29, 2024.

RESPONSE: Pursuant to FIE's General Objections, deny.

Q. The Policy's own provisions bearing on capacity, suit, and forum

> Relevant to Defendant's First Affirmative Defense, which alleges "there exists a lack of jurisdiction over Defendant FIE."

REQUEST FOR ADMISSION NO. 121: Admit that The Policy Form, at "General Conditions Applying to The Entire Policy," provision 15 ("Reciprocal provisions"), states: "We may sue or be

sued in our own name, as though we were an individual, if necessary to enforce any claims which arise under this policy."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 122: Admit that The Policy Form, at "General Conditions Applying to The Entire Policy," provision 11 ("What law will apply"), states: "The laws of the state where the residence premises is located shall govern any and all claims or disputes in any way related to this policy."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 123: Admit that the text of The Policy Form in force on July 13, 2024 is identical to the text of Form 56-5543 2nd Edition (7-08) included in the "Home Insurance New Policy" documents for The Policy that You sent to Plaintiff Yibiao Lu under a cover letter dated December 8, 2014.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 124: Admit that the homeowner's policy form in force for The Policy on July 13, 2024 was Farmers Next Generation Homeowners Policy Minnesota, Form 56-5543 2nd Edition.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 125: Admit that the "Subscription Agreement Notice" included in Your renewal documents for The Policy for the policy period October 22, 2023 to October 22, 2024 designates Fire Underwriters Association as attorney-in-fact.

RESPONSE: Pursuant to FIE's General Objections, deny.

R. Service of process and jurisdiction

Relevant to Defendant's First Affirmative Defense, which alleges "there exists a lack of jurisdiction over Defendant FIE."

REQUEST FOR ADMISSION NO. 126: Admit that You received the Summons and Complaint in this action on or before July 8, 2026.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 127: Admit that service of the Summons and Complaint in this action upon Fire Insurance Exchange under Minn. Stat. § 45.028 was effective no later than July 8, 2026.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 128: Admit that You do not contend that service of the Summons and Complaint upon Fire Insurance Exchange was insufficient.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 129: Admit that You do not contend that this Court lacks personal jurisdiction over Fire Insurance Exchange.

RESPONSE: Pursuant to FIE's General Objections, deny.

S. Plaintiff Jie Hu's status under The Policy

Relevant to Complaint ¶4, which Defendant's Answer did not admit as to Plaintiff Jie Hu, and to Defendant's First Affirmative Defense.

REQUEST FOR ADMISSION NO. 130: Admit that The Policy Form, under "Definitions," states: "Throughout this policy, 'you' and 'your' mean the 'named insured' shown in the Declarations or renewal notice and your spouse or registered domestic partner under applicable state law if a resident of the same household with you."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 131: Admit that on July 13, 2024, Jie Hu was the spouse of Yibiao Lu.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 132: Admit that on July 13, 2024, Jie Hu resided at The Property in the same household as Yibiao Lu.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 133: Admit that Jie Hu is an insured under The Policy with respect to The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 134: Admit that You do not contend that Jie Hu lacks standing to assert a claim under The Policy arising from The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 135: Admit that You do not contend that Jie Hu is not a proper party plaintiff in this action.

RESPONSE: Pursuant to FIE's General Objections, deny.

T. The September 24, 2025 message and its signer

Requests 136 through 139 concern Your September 24, 2025 electronic mail message to Plaintiff Yibiao Lu.

REQUEST FOR ADMISSION NO. 136: Admit that Your September 24, 2025 electronic mail message to Plaintiff Yibiao Lu was signed by Twonda Miller, Senior General Claims Adjuster, Fire Insurance Exchange.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 137: Admit that Twonda Miller acted on behalf of Fire Insurance Exchange in handling The Claim.

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 138: Admit that Your September 24, 2025 electronic mail message to Plaintiff Yibiao Lu stated, "Unfortunately, the umpire did not provide a report or estimate."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 139: Admit that Your September 24, 2025 electronic mail message to Plaintiff Yibiao Lu stated, "Our only recommendation is to refer you to your appraiser for any additional details he may have in his file."

RESPONSE: Pursuant to FIE's General Objections, deny.

U. The October 7, 2025 request for Nicholas Brau's inspection report or notes

Requests 140 and 141 concern Plaintiff Yibiao Lu's October 7, 2025 electronic mail message, and are to be read with Requests Nos. 31, 85, and 86.

REQUEST FOR ADMISSION NO. 140: Admit that on October 7, 2025, Plaintiff Yibiao Lu sent an electronic mail message to myadjuster@farmersinsurance.com stating, "We request to have a copy of the inspection report/notes from Nic Brau. He came to the property on 9/6/2024 to perform the inspection."

RESPONSE: Pursuant to FIE's General Objections, deny.

REQUEST FOR ADMISSION NO. 141: Admit that Your October 10, 2025 letter to Plaintiffs was sent in response to the message identified in the preceding request.

RESPONSE: Pursuant to FIE's General Objections, deny.

KENNEDY LAW FIRM P.C.

Dated: October 21 , 2026

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